

SAMPLE AGREEMENT

AI Interview Services Agreement

Sample deal for AI-assisted interview services between Intervue and EY India.

Service provider	Intervue [exact legal entity and registered address]
Customer	EY India [exact contracting legal entity and address]
Service	AI-assisted interview scheduling, delivery and reporting
Effective date	[DD Month YYYY]
Initial term	[12 months / other]

DRAFT NOTICE

This is a sample commercial document for discussion. It is not an executed agreement or legal advice. Confirm the exact legal names, addresses, commercial terms, tax treatment, governing law and statutory requirements with qualified counsel before signature.

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AI Interview Services Agreement

This AI Interview Services Agreement (the **Agreement**) is made on **[date]** between **Intervue [legal entity]** (the **Provider**) and **EY India [contracting legal entity]** (the **Customer**). The Provider and Customer are each a **Party** and together the **Parties**.

1. Purpose and scope

- 1.1** The Provider will supply the AI-assisted interview services described in Schedule 1, including configured interview workflows, candidate invitations, structured questions, permitted recording or transcription, evaluation outputs, dashboards and support.
- 1.2** The Services support recruiters and interviewers. The Customer remains responsible for job requirements, lawful candidate communications, final employment decisions and meaningful human review. No candidate will be rejected or materially disadvantaged solely because of an automated score unless the Customer has separately validated and lawfully approved that use.
- 1.3** The Provider will not use facial recognition, emotion inference, protected-characteristic prediction or covert monitoring unless expressly listed in a signed statement of work and confirmed lawful by both Parties. Prohibited capabilities are off by default.

2. Orders, implementation and responsibilities

- 2.1** Each order or statement of work will state the hiring program, roles, countries, languages, estimated interview volume, integrations, service dates, fees, retention period, permitted data uses and named contacts.
- 2.2** The Provider will configure the platform, train authorized Customer users, maintain role-based access, provide technical documentation and notify the Customer before material changes to interview logic or scoring.
- 2.3** The Customer will supply accurate role criteria and approved questions, identify prohibited topics, obtain required notices or consents, give candidates a support route and reasonable accommodation path, and ensure only authorized users access results.
- 2.4** The Customer will not submit illegal, discriminatory or irrelevant interview criteria, attempt to identify protected traits, reverse engineer the Services, or use outputs for purposes outside the signed order.

3. Service levels and support

- 3.1** The Provider will target the availability and support response times in Schedule 2, excluding agreed maintenance, Customer systems, internet failures and force majeure. Planned maintenance will be notified at least **[five]** business days in advance where reasonably possible.
- 3.2** Critical incidents affecting active interviews, data confidentiality or material scoring accuracy will receive immediate triage. The Provider will communicate status, mitigation and a root-cause summary within the agreed timeline.

4. Fees and payment

- 4.1** Fees, included volume, overage pricing and taxes are listed in Schedule 3. Undisputed invoices are payable within **[30]** days. The Customer may dispute an invoice in good faith within **[15]** days, identifying the disputed amount and reason.
- 4.2** The Provider may not suspend active candidate interviews for a genuinely disputed amount. Suspension for overdue undisputed amounts requires written notice and a reasonable cure period.

5. Candidate data, privacy and security

- 5.1 The Customer is the controller or equivalent decision-maker for candidate personal data, and the Provider acts as processor or service provider, except for limited account, billing and security data processed for its own lawful purposes. A signed data processing addendum prevails for privacy terms.
- 5.2 Candidate Data may include contact details, application information, interview audio/video where enabled, transcripts, responses, scores, reviewer notes, device and security logs. The Provider will process it only on documented instructions and only for the agreed hiring program.
- 5.3 The Provider will maintain appropriate administrative, technical and physical safeguards, including encryption in transit and at rest, least-privilege access, access logging, vulnerability management, backups and incident response.
- 5.4 The Provider will notify the Customer without undue delay, and within **[24/48]** hours where contractually required, after confirming a security incident affecting Candidate Data. The notice will include known scope, likely impact, mitigation and ongoing updates.
- 5.5 Candidate Data will be stored in **[approved region]** and retained for **[period]**, then securely deleted or returned, subject to lawful backup cycles. Subprocessors and international transfers require the safeguards stated in the data processing addendum.

6. AI governance, quality and fairness

- 6.1 The Provider will document the purpose, input data, output meaning, known limitations and appropriate human use of each AI-assisted feature used under this Agreement.
- 6.2 Before production use, the Parties will agree acceptance tests for role relevance, consistency, accessibility, language performance, scoring reliability and high-risk failure cases. The Provider will disclose material test results and known limitations relevant to the Customer's use.
- 6.3 The Customer may request a reasonable audit or independent evidence concerning security, data handling and agreed AI controls. Audits will protect other customers' information and Provider trade secrets.
- 6.4 Candidate Data, prompts, recordings, transcripts and Customer-specific outcomes will not be used to train shared models unless the Customer expressly opts in through a separate written term describing the data, purpose, safeguards and withdrawal process.
- 6.5 The Provider will maintain version records for material scoring logic. A material change that could affect candidate outcomes requires notice, testing and Customer approval before use in an active hiring program.

7. Confidentiality and intellectual property

- 7.1 Each Party will protect the other's non-public business, technical, security, pricing and candidate information, use it only for this Agreement and disclose it only to personnel or advisers with a need to know and equivalent duties.
- 7.2 The Provider owns the platform, general models, software, documentation and improvements that do not identify the Customer or Candidates. The Customer owns its job criteria, questions, content, Candidate Data and Customer-specific reports, subject to the Provider's limited right to deliver the Services.
- 7.3 Feedback may be used to improve the Services only if it does not reveal Customer Confidential Information or Candidate Data. Neither Party may use the other's name or logo publicly without prior written approval.

8. Compliance and candidate protections

- 8.1 Each Party will comply with applicable employment, anti-discrimination, accessibility, privacy, cybersecurity and record-retention laws for its responsibilities. The Customer determines the lawful basis and required candidate notice.

8.2 Candidates will receive a clear channel to request accommodation, report technical issues and ask for human review. The Customer will define how interrupted, inaccessible or disputed interviews are handled without unfair penalty.

9. Warranties, indemnities and liability

9.1 Each Party warrants that it has authority to enter this Agreement. The Provider warrants that the Services will materially conform to signed documentation and will be delivered professionally. The Customer warrants that its instructions, criteria and supplied content are lawful and relevant to the role.

9.2 Indemnities for intellectual-property claims, unlawful Customer instructions, confidentiality breach and data-protection violations must be completed by counsel, including control of defense, cooperation and settlement approval.

9.3 Except for exclusions agreed by counsel, neither Party is liable for indirect or consequential loss. The general aggregate liability cap is **[fees paid or payable in the preceding 12 months / negotiated amount]**. Separate higher caps may apply to confidentiality, security, data protection and indemnity obligations.

10. Term, termination and exit

10.1 The Agreement begins on the Effective Date and continues for the Initial Term, then renews for **[renewal period]** unless either Party gives **[60/90]** days' notice.

10.2 Either Party may terminate for a material breach not cured within **[30]** days after written notice, or immediately for insolvency, unlawful use or a serious unresolved security risk.

10.3 On termination, the Provider will stop new processing, permit an agreed export period, return or delete Candidate Data and provide reasonable transition assistance at the rates in Schedule 3.

11. General

11.1 Neither Party may assign the Agreement without consent, except to an affiliate or successor that accepts the obligations. The Provider may not subcontract material processing without following the data-processing terms.

11.2 The Agreement, orders, data processing addendum and schedules form the entire agreement. The order of precedence is: data processing addendum for privacy matters; signed order; this Agreement; then other schedules.

11.3 Notices must be sent to the legal and operational contacts stated in the order. Governing law, courts and any dispute-escalation process are **[to be agreed]**.

Signatures

Intervue [legal entity]	EY India [contracting legal entity]
Authorized signatory: _____	Authorized signatory: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____

Schedule 1 - Statement of Work

Workstream	Agreed detail
Hiring program / roles	[Insert business unit, roles and countries]
Interview volume	[Monthly / annual committed and forecast volume]
Interview modes	[Text / audio / video / live coding / human panel]
AI features enabled	[Questioning, transcription, summaries, scoring, proctoring]
Explicitly disabled features	[Emotion inference, facial recognition, protected-trait inference, other]
Languages and accessibility	[Supported languages, captions, screen-reader and accommodation route]
Integrations	[ATS, SSO, calendar, HRIS, export]
Customer acceptance tests	[Accuracy, reliability, fairness, security and usability thresholds]
Data region and retention	[Insert]
Go-live and implementation milestones	[Insert]

Schedule 2 - Service Levels

Measure	Target	Measurement / remedy
Monthly platform availability	[99.9%]	Exclusions and service credit formula to be agreed
P1 security/service incident response	[30 minutes]	24x7 acknowledgement and continuous updates
P2 degraded service response	[4 business hours]	Business-hours support
Candidate support response	[Target]	Channel, hours and escalation path
Data export after termination	[30 days]	Standard format and secure delivery

Schedule 3 - Commercial

Item	Commercial term
Implementation fee	[Currency and amount]
Subscription / platform fee	[Currency, billing period and included users]
Included interview volume	[Insert]
Overage price	[Per interview / minute / assessment]
Premium support	[Insert]
Travel or pass-through cost	Only with prior written approval
Payment term / tax	[Insert]
Service credits	[Formula and monthly cap]